

tive to the working of mines or minerals therein or in other land.

(8). In purchase, either in fee simple, or for a term of sixty years or more, of mines and minerals convenient to be held or worked with the settled land, or of any easement, right, or privilege convenient to be held with the settled land for mining or other purposes.

(9). In payment to any person becoming absolutely entitled or empowered to give an absolute discharge.

(10). In payment of costs, charges, and expenses of or incidental to the exercise of any of the powers, or the execution of any of the provisions, of the Act.

(11). In any other mode in which money produced by the exercise of a power of sale in the settlement is applicable thereunder.

**Improvements under Agricultural Holdings Act.** — And under the Agricultural Holdings (England) Act, 1883 (*c*), capital money arising under the Settled Land Act, 1882, may be applied in payment of any monies expended and costs incurred by a landlord under the former Act in the execution of any improvement mentioned in the first or second parts of the schedule thereto (*d*), as \* for an improve- [\*564] ment authorised by the Settled Land Act; and such

(*c*) 46 & 47 Vict. c. 61, s. 29.

(*d*) The first part of the schedule relates to improvements to which the landlord's consent is required, and comprises:

(1.) Erection or enlargement of buildings.

(2.) Formation of silos. As to the Court authorizing the formation of silos, see *Re Broadwater Estate*, 33 W. R. 738.

(3.) Laying down of permanent pasture.

(4.) Making and planting of osier beds.

(5.) Making of water meadows or works of irrigation.

(6.) Making of gardens.

(7.) Making or improving of roads or bridges.

(8.) Making or improving of watercourses, ponds, wells, or reservoirs, or of works for the application of water power or for supply of water for agricultural or domestic purposes.

(9.) Making of fences.

(10.) Planting of hops.

(11.) Planting of orchards or fruit bushes.

(12.) Reclaiming of waste land.

(13.) Warping of land.

(14.) Embankment and sluices against floods.

The second part of the schedule relates to drainage an improvement in respect of which notice to the landlord is required.